BRENDAN NGWA NFORBI
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Plaintiff in Pro Per

October 15, 2026

VIA E-MAIL

E. Forrest Shryock, Jr., Esq.
Raenalene C. Musni, Esq.
Vogl Meredith Burke & Streza LLP
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San Francisco, California 94104
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Re: Brendan Ngwa Nforbi v. Ross Stores, Inc., et al., Santa Clara County Superior Court No. 26CV501995 - Evidence Preservation Demand

Dear Mr. Shryock and Ms. Musni:

This letter supplements Plaintiff's prior preservation notice and requests immediate confirmation that Ross Stores, Inc., Ross Dress for Less, Inc., and their agents, vendors, insurers, employees, and custodians have suspended any deletion, overwrite, recycling, modification, or destruction process affecting evidence concerning the August 25, 2026 incident at the Ross Dress for Less store located at 119 E. El Camino Real, Sunnyvale, California.

Defendants' Verified Answer states that surveillance cameras covered the entrance and captured the incident. The recordings are central to the disputed issues of Plaintiff's entry with the beverage, the employee's position relative to the exit, the words and duration of the interaction, the conduct of nearby employees and customers, and Plaintiff's departure. Please preserve complete recordings rather than selected clips.

The preservation obligation includes information held by third-party surveillance vendors, cloud hosts, security contractors, claims administrators, insurers, and other service providers within Defendants' possession, custody, or control. Please transmit preservation instructions to those custodians immediately.

Evidence to Preserve

1. All native surveillance video and audio from every camera covering the entrance, exterior approach, exit, registers, queue, adjacent sales floor, and employee work areas from 8:30 p.m. through 9:30 p.m. on August 25, 2026, including pre-event buffers and continuous footage.

2. All exports, clips, transcodes, still images, enhanced copies, mobile-device recordings, and copies transmitted to counsel, insurers, claims administrators, employees, vendors, or investigators.

3. Associated metadata, timestamps, camera identifiers, file names, frame rates, resolution, codec information, audio channels, hash values, access history, audit logs, export logs, deletion logs, overwrite logs, and chain-of-custody information.

4. Camera maps, system diagrams, photographs, configuration records, maintenance records, retention settings, and documents identifying the hardware, software, cloud host, and surveillance vendor.

5. Incident reports, loss-prevention reports, customer-contact reports, daily logs, stop logs, security logs, manager logs, claim notes, witness statements, photographs, diagrams, and investigative materials concerning the incident.

6. Employee schedules, time records, assignments, rosters, and records sufficient to identify DOE 1, the cashier, the manager on duty, loss-prevention supervision, and every employee who observed or discussed the incident.

7. Emails, text messages, internal messages, Teams or similar communications, voice messages, and other communications concerning Plaintiff, the incident, the beverage, the preservation demand, surveillance footage, or this lawsuit.

8. Policies, procedures, manuals, directives, checklists, job descriptions, and training materials concerning merchant detentions, suspected theft, customer questioning, outside merchandise, receipt checks, racial profiling, equal customer service, implicit bias, and de-escalation.

9. DOE 1's training acknowledgments, completion records, supervision records, and records of prior complaints or corrective action involving customer stops, blocked exits, unsupported theft inquiries, or alleged discriminatory treatment.

10. Point-of-sale, inventory, SKU, sales, return, shrink, shortage, and adjustment records concerning Celsius-branded beverages at the STORE on August 25, 2026.

11. Documents sufficient to show other customer stops, detentions, or merchandise inquiries at the STORE and complaints alleging racial profiling, unequal treatment, or unreasonable detention.

12. Insurance, indemnity, claim, and notice records concerning this incident, while preserving any legitimately privileged material in place rather than deleting it.

Please preserve original evidence and forensic-quality copies. Do not edit, annotate, compress, crop, change file format, reduce resolution, strip metadata, or rely solely on a screen recording or convenience export. If any responsive evidence has already been deleted, overwritten, lost, corrupted, or altered, preserve all information showing when, how, why, and by whom that occurred.

Please confirm in writing by October 20, 2026, that preservation measures are in place; identify the surveillance custodian and any third-party vendor; state the ordinary video-retention period; and state whether all responsive video remains available. This request seeks preservation only and does not require immediate production or waive Plaintiff's forthcoming discovery demands.

Respectfully,

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Brendan Ngwa Nforbi
Plaintiff in Pro Per